were opened for worship, says that's all the more reason to shine the torch into the dark. Gyanvapi is neither a title suit, nor a plea to change the nature of the place, he says. "All we want is to identify its religious character. Under Article 25, no law can take away anyone's fundamental right to worship." Over the past few weeks, the six cases the Jains have been pursuing for over three decades—from Kashi and Mathura to the Taj—have been attaining critical mass. And putting politics on the usual red-hot skewer. At the other end of the map, AIMIM (All-India Majlis-e-Ittehadul Muslimeen) chief Asaduddin Owaisi said Gyanvapi will endure for all "eternity". A BJP leader tauntingly asked him to "read history again"....

But where history had indeed seen transgressions, should that lid be opened? Not to do so was the precise prescription of the Places of Worship Act—as the Supreme Court said in 2019, "law is not the answer" for historical grievances. Most experts feel the blur of petitions crowding the courts are unlawful under the Act—senior Supreme Court advocate Sanjay Hegde to her ancestors.

WHERE IT'S HEADED

On May 12, the Allahabad High Court dismissed the petition filed by Rajneesh Singh. "Please enrol yourself in MA, then go for NET, JRF and if any university denies you research on such a topic, then come to us," the court told the petitioner. When he insisted on access to "those rooms", the court remarked, "Tomorrow will you ask to go to the chambers of honourable judges?"

"Oak's theory about the Hindu temple has no historical basis, it's more of a myth," says M. Sajjad, professor of history, AMU

On May 15, The Archaeological Survey of India released photographs of maintenance work being undertaken in some of the underground rooms closed to the public. Agra ASI chief R.K. Patel said the pictures are on the ASI website as a part of the January 2022 newsletter. According to Professor Mohammad Sajjad, professor of history at Aligarh Muslim University, "Oak's theory about the Hindu temple has no historical basis, even courts have never agreed on them. It's more of a myth."

In 2017, the ASI had told an Agra court that the Taj was a tomb, not a temple. The current controversy might die down for now, but dubious claims about the Taj keep floating on in the internet.

–Prashant Srivastava



JUSTICE GOVIND MATHUR

Former Chief Justice, Allahabad High Court

"The Babri Masjid was claimed by an agitation but declared as Ramjanmabhoomi by a court judgment. Now, Gyanvapi and Mathura mosques are claimed by individuals by fighting the cause on legal forums. This is a new tactic to use courts to create communal atmosphere. It is for courts to check it"

"In light of the Places of Worship Act, 1991, the court trying the case in Varanasi could not have passed any order for survey of the mosque premises without examining its competence to adjudicate the dispute.... At this stage, the order given for the survey is patently illegal"

"Courts must look into our constitutional scheme, historical perspective of India as a secular democratic republic and the objects of the 1991 Act. Otherwise, history will not spare even the judiciary for not performing its constitutional and statutory duty when the country most needed it"

–as told to ***Kaushik Deka***